Cc&Af vs Merc & Others on 16 February, 2009

itfiés-f¢:s§'$ 'ma: A§3§3ee:E§e3%£=3 Tsritmnmfi far E§ess§'r§e::§%y
5:£5&§:3§3&§E'C§'§"§3 3ur§s»:£§m"§<:m}

Anneui N0. 16% 3*? ZQQS &
LA. N0. 2&3? Csf 20538

Qaied: 16*" Femucsrv, 26353"?

Pressmi : Hs:>n'b§ee Mr. Jusfice M. Karpngu Kfisicsyczgczawm, Clhmfirpesyscm
Hon'b§e Mr. AA. Khan, '§'et:hr:§-ates? Member

Cipia Cmacea' & AWJS Fcsundmiéon
:'§é'mmbe::§ --- Bcmg-zzzime Eypczss Rand,
Wmje, Purge Appeiiatznfi {3}
versus
3. Mcahamshim Eéecmcify Reguiuimry C-mnmigsimn
Wmfid Tracie: {:E':'i'§§'§'e, ilenire N03,
13*" Fines, Cufi' Parade, Mumbminaicifl (335
2. Muhmczshirazz Sims Eieciriciiy Dishribufion Co. Lhzi,
Pk)? No. €33«~<}", F'mks:ashgcs<:§, Bandm {E},

Mamba? --- 406 (353 Responders?
.2'
COU:""a5C:'.§ for '(he Appeilarfrz' £5) : Mr. \\fi}(}'}i Nair, Ix/'.r'. F3o1;'<:z*£ Jone
Mr. ~*.Cmi$<
Counsel for The F?.espondem'{s) : Mr. Ravi Pf'(:iE<C1SE"i for MSEDCi.--Resg:.23

Mr. Buddy A. !'€«:3ngC1rn:3ciht3t'\ 8..
Mr. Afsji': Maxim) for MERC.--
C3R§ER
The '§(3F§?'§ order pasaed by éhe ix/':-::;h<3s'Qshf:*<: E§€3€_Zi'€'§<_?§§"y'
R~:3guiai'o.r'y Commission on '2€}.,C=«S.12OC>8, E5 cm3iEeregr;-H15 in .A_r_>;.:e<1§
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{_',cfieg;zo:'\,' HT it Cornmercisi frorr: HT 1 Nor?--coniinuc-L13 CIcs'§egor'y' 'v\r'i'§

giving otw rmfice ft; him.

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G§C)}J£?§§CJfl'? fhaf 'rhea cxppceiémwf (terms? be <:<::'r€--:'<v:,*-<::-:'izs:,~\::Z as

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an opp<:sr'?ur':E§y in make the submissiens and éhe mcfierieis, vv§i'§'*.
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 Commission 'ihc4i' 31' win me? come Under fhe hosg:>imi cefegory.

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ietirnee' counsei for The Commission and %he Seemed for

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fig.

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. .1. A? ..r. F ...a. .1. 3. .. 4\' M . _.t 1.» hf C ..... >.. C T. «n C C xx 9 4.; 7: K 2: 2 ,1.

4?, .. 5 «L F nu. ...< .. 3.4 "4... in «T. . S C L. x 2 f ...w I Q r... .4". .... 3 c.. W. E L d C . 9 .. m R < .0 .3 tr» mm ..... □ı . 5..., _ (M L J: J J... M. K .4... m . .3 J V .n. . L C H. ._ _ L x .c 3 Mn 5 1.» AU 7 1.... 5 w A. .m{ H L ..... .34 C. ..\ :7! Q an H.» . (J u .\ .3 ..u.. . 4 .14. H .1 r. a .? .u 7. . J as _. ... ,.., x 1. x .... . 2 {. ..(. 3. w 1. .. ...h . .., G L .... hm. as .,... L 0.. A, ... & H... A . G :. 3 X ... . . n. m. . 5 f R .: ... m G .... D M: c u Q. ..,.. ..., w. .... .7. .. n e o 3 W .. an 3. r n.

..... e u n q . . .:.. .r .m w. 0 ..m H ...., o Nu «U 0 in A .w. mm... .5. C 'JD(C W it an {I .2 3 ..... . I n ...., .m. V . . , H. .3 » nu. 1 an ..., T I . . . R .5 5 J J ,_. .L E» 3. ..... 5 ..... .x.,. ,1. . . +1 J ....u .. .3 .... .2. F .5 mu 6... ....., WW.» 0. % ,H H. ..wz 1. ..C y W. 2.. ...:. H 8 r. 3 ...>. . .1. .: f .+ A .0, an N «u, 5., -, 2 .3 ,. 2,. Q ..a.. . 5 O... L ,... 3 .. . P. c ..... we .£_. » .\ □ı .5 C 3- .,.... C 2.. .... C W. [G W N .....w e S . B G 8 C 7 _.r. C .7. .2. .1. 8 B. .6 ..... 5.... an .. 3 C : . n 7 r... N... r .. .. a an 1 n.» 3 c... ..n ..u . an . ./ 3 rd .. . W. G f G .v. C .

.r.. O. 3 .15 C, a . .f. . .. W :: 3 G I 5. 3.. ..r. 1. 0 S 9 h. F . 3 .2. U a. e B «M W G 6 L _N i .. C x." 0 n C 5 9 x. M ...u n. 3.. L." h u H i m. ...;. e . H c 5... w. yr n f 5. x 9. E .r.. .. 6 n H. ,... ...\¢ .6 .3. 5 1.. Wu. . I. ..£ mm. Y1 . 1.. 3 f .w..\. . me. an . . O. F. .n 1.. f...

1.. .... e . 5 G I a. 0 .m an 3. L U ...._ 3 2 □. M. w. .0. G e 0 f. . .. . .

.1 . ..n. ..... E i 7. .! ...e. W ...m M 4% \. C ..... we 9 1! .w.. L. R R 0 0 an 0 mm ...r. . M ..... r. .4 J O r... a ; 1/ . xi ....1 J. 14 aa 3;

fr } at S 5 3: mt .., .U H. Q m. .5. .....

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:1. «J O . MI.

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cf: mr ..

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> «'h.c ,~".;\~>.-:.\'.\'«~>~',~ 'fine-y are 2":-:>1' hcsspémis owning such 1°.-:::c:'.-Wes' -':}:"'sC3 'rh<:3'E in fhc□' ev<~3n?,, we wi=§§' be r'e--cQfegoris€-;d Us HT NQra--C<mfEr"mo=_.=s -::c:§egorv cmd mm HT <.'j:>mmes'c§c:E. We find f0:<c:e in 1'"n§s c:on1'en~'ric.sn. Under fhese circumsfcxnces, we are of me ogoinion 'Su□:2:
>
> mo:=.'%e:~r can be rem».-jmded 'r-:> Cjommissican csnd ma Commission (:;»;:m direcmtj '£0 consider fh□s czgues□csn and suifc:-.bi€~: orders in -i?§£;_'CQi'§,'§{'3§";C'.t"~; with ic_:w, with rreferen<::e fo the c1s,<:-eci which has been s"<::.iseu' fay >.'%'e;a' iewne-d Counsel for \'he c;'2;:«;;>e;i!:::m* before □his Trébuncji, can We basis of mczi'ez'io$s picnced ibefore {ri□e Comn"z§5sfon by :='he Gppeficeni' 0.f?er §7ecss'§s"::g;s fhe iearnecé counsei fc:-3' d§s1'rE%3ui'Ec,m iicenseae. Acc-::>rciEr2gE'y', is C:-.='d€3!':9C;§, This couid bu done as expers□fious□y as possibie. if '.35 mc;=c§»=3 ciem' 2'hr3::' we care expressing any opinion in i'hc:;'='..~"_.=\u~_,~m=~ The appeal -disposed of. cosésv
>
> ---i 'u…_.,___,____;_ ~\ _____,,..-- \ {Auikw Khcsrs} {.B':.ss§§<:sa~ M. □earpcsgsx \f¥nm»'»:sg<x:.'s} Tssechn□-3:2! Member: Chc:§r;:u=.>rson